

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Carlo Vescovi	Team: Squad #14	CCRB Case #: 202311898	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 12/18/2023 7:35 PM	Location of Incident: 2nd Avenue F line subway station near the Houston Street and Christie Street exit	18 Mo. SOL 6/18/2025	Precinct: 05		
Date/Time CV Reported Mon, 12/18/2023 10:10 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 12/18/2023 10:10 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Saleem Hosein	23325	969799	TD 4
2. PO Guo Chu	16954	959550	TD 4

Officer(s)	Allegation	Investigator Recommendation
A . PO Saleem Hosein	Abuse: Police Officer Saleem Hosein stopped an individual.	A . Within NYPD Guidelines
B . PO Guo Chu	Abuse: Police Officer Guo Chu stopped an individual.	B . Within NYPD Guidelines
C . PO Guo Chu	Force: Police Officer Guo Chu used physical force against an individual.	C . Substantiated
D . PO Saleem Hosein	Force: Police Officer Saleem Hosein used physical force against an individual.	D . Unable to Determine
E . PO Saleem Hosein	Abuse: Police Officer Saleem Hosein failed to activate his body-worn camera.	E . Substantiated
F . PO Guo Chu	Abuse: Police Officer Guo Chu failed to activate his body-worn camera.	F . Substantiated
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
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§ 87(2)(g), § 87(4-b)		

Case Summary

On December 18, 2023, § 87(2)(b) filed the following complaint with the CCRB via the website. § 87(2)(b) filed a duplicate complaint with IAB via email on behalf of § 87(2)(b) who witnessed portions of the incident.

On December 18, 2024, at approximately 7:35pm, Police Officers Saleem Hosein and Guo Chu, both of Transit District 4, stopped an unidentified individual on the mezzanine level of the 2nd Avenue F line subway station, near the southwest Houston Street and Christie Street exit in Manhattan (**Allegation A-B: Abuse of Authority, Within NYPD Guidelines**). PO Chu and PO Hosein attempted to eject the individual from the station because the individual held the emergency exit gate open and attempted to evade the fare upon the officers' approach. The individual refused to leave and dropped to the ground, at which point PO Chu dragged the individual by the leg approximately 10-15 feet across the ground (**Allegation C: Force, substantiated**). PO Chu and PO Hosein then escorted the individual to the street level. PO Hosein allegedly pushed the individual into the glass wall of a building next to the subway exit (**Allegation D: Force, Unable to Determine**). PO Chu and PO Hosein improperly used their body-worn cameras (BWC) (**Allegations E, F: Abuse of Authority, Substantiated**). § 87(2)(g), § 87(4-b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

No arrests or summonses resulted from this incident.

The investigation received MTA stationhouse footage and civilian cell phone footage of this incident, the relevant aspects of which are addressed in further detail.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Saleem Hosein stopped an individual.

Allegation (B) Abuse of Authority: Police Officer Guo Chu stopped an individual.

Allegation (C) Force: Police Officer Guo Chu used physical force against an individual.

The investigation established the following facts: At the time of the incident, PO Chu and PO Hosein were assigned to patrol subway stations within the confines of Transit District 4. At the 2nd Avenue F line subway station, PO Chu and PO Hosein observed an individual, unidentified by the investigation, holding the emergency exit door open. PO Chu and PO Hosein approached the individual, at which time the individual attempted to walk through the turnstile without paying a fare. PO Chu and PO Hosein physically stopped the individual from doing so and attempted to eject him from the station by guiding them towards the exit. The individual dropped their weight and fell to the ground on their right side and upper back. PO Chu then grabbed the individual by their left leg and dragged them at least ten feet across the ground.

The investigation obtained MTA surveillance footage, which was consistent with a combined IAB video provided to the CCRB at the conclusion of the IAB investigation. At 0:00 of the video (BR 01), the individual, here identified by their blue and black jacket, grey pants, and holding a pair of gray crutches, is captured standing with his back against the subway emergency exit gate, holding the door ajar for approximately 16 seconds while looking through their wallet. At 0:24, PO Hosein, identified as a darker skinned officer in navy uniform and a beanie, approaches the individual. At 0:45, the camera angle changes, and PO Hosein is captured speaking to the individual and places one arm on the individual's shoulder to guide the individual away from the turnstiles. At 1:27, the individual turns back towards the turnstiles and attempts to walk through them without paying a fare. PO Chu, here identified as a lighter skinned Asian male officer wearing navy uniform and beanie, enters from the left side of the screen and grabs the individual, pulling them away from the turnstiles. At 1:26, the camera angle changes again, still capturing the turnstile bank but facing towards the exit of the station. PO Chu attempts to physically guide the individual away from the turnstiles. The individual is backpedaling with some difficulty, still holding a pair of

crutches. At 1:47, the camera angle changes again, and at 1:48, all parties appear on screen, and the individual is captured dropping their weight and falling onto the ground. PO Chu takes hold of the crutches and throws them on the ground toward the wall of the station, roughly five feet away and out of reach of the individual. The individual situates themselves on the ground so that they are laying flat on their back. PO Chu grabs the individual by the left leg (1:54) and drags the individual approximately 10-15 feet across the ground towards the exit. PO Chu and the individual disappear off screen and the video concludes at 2:07. The individual is not captured swinging their crutches at an officer or hitting any officer with crutches.

PO Chu (BR 02) and PO Husein (BR 03) were consistent that upon approaching the individual after observing the individual holding the emergency exit door open, the individual attempted to enter the subway system and evade the fare by manipulating the turnstile. Neither PO Chu nor PO Hosein disputed that PO Chu dragged the individual by the leg across the ground while attempting a transit ejection. PO Chu and PO Hosein both stated that they observed the individual holding the emergency exit gate open, and that upon approaching the individual, the individual attempted to go through the turnstile without paying a fare, which was a violation of MTA code. PO Chu and PO Hosein attempted to eject the individual, but the individual was resistant.

PO Chu stated (BR 02) that he believed the individual was intoxicated because their breath smelled of alcohol and they were mumbling their words. It was clear to PO Chu that the individual was injured because they had difficulty walking, were holding crutches, and made a statement to PO Chu about a knee operation. PO Chu asked the individual to leave, but the individual refused and attempted to go through the turnstile without paying a fare. PO Chu and PO Hosein then grabbed the individual to escort them from the station, but the individual refused and began flailing their arms while holding their crutches. PO Chu believed the individual was swinging the crutches at the officers and was concerned the crutches might hit the officers. The crutches never made contact with any officer of which PO Chu was aware. As the parties moved away from the turnstiles, the individual dropped their weight and fell onto the ground intentionally. PO Chu and PO Hosein continued to instruct the individual to leave the station, but the individual refused. The individual showed no other signs of resistance at this point in the incident. PO Chu then dragged the individual by their leg towards the exit of the station. At the time, PO Chu believed that dragging the individual by the leg was the safest way to remove them from the station, but stated in his CCRB interview that in hindsight, he believed there was a better way to remove the individual from the station and that he should have been conscious of the individual's apparent leg injury.

PO Hosein stated (BR 03) that the individual refused to leave the station and began flailing their arms while holding the crutches. As they guided the individual away from the turnstiles, the individual dropped their weight and fell onto the ground. Either PO Hosein or PO Chu moved the crutches out of the individual's reach. PO Chu then dragged the individual across the ground by the leg. PO Hosein told PO Chu, "Stop," once while PO Chu dragged the individual, and PO Chu stopped immediately. PO Hosein told PO Chu to stop because he felt it was tactically unsound and because officers are not supposed to do that to members of the public. PO Hosein felt that he and PO Chu could have feasibly escorted the individual out by the arms, avoiding the need to drag the individual on the ground. PO Hosein did not speak to any instances of the individual swinging their crutches or attempting to hit officers with their crutches before PO Chu dragged the individual.

IAB Group 54 conducted a concurrent investigation into this incident and reached the following findings: substantiated allegations of failure to activate body-worn camera, failure to prepare an ejection report, and failure to notify a supervisor of an incident involving use of force for both PO Chu and PO Hosein. IAB Group 54 also substantiated an allegation of force against PO Chu. As a result of this incident, PO Chu was penalized with a loss of three vacation days and PO Hosein was penalized with a loss of one vacation day (BR 18).

Per NYPD Patrol Guide Procedure 208-01 (BR 15) members of service may conduct an arrest without a warrant for any offense when there is reasonable cause to believe the offense is committed in his presence.

MTA Rule of Conduct 1050.4 (BR 16) states that no person shall use or enter upon the facilities or conveyances of the authority, for any purpose, without the payment of the fare or tender of other valid fare media used in accordance with any conditions and restrictions imposed by the authority. For the purposes of this section, it shall be considered an entrance into a facility or conveyance whenever a person passes through a point at which a fare is required or collected. No person shall, for purposes of gaining entry into a facility, proceed over or under any turnstile or otherwise proceed in any other unauthorized manner through an exit gate or through or past any other point at which a fare is required or collected and it shall be no defense to a charge of a violation of this subdivision that fare media, a fare media sales device or a fare collection device was malfunctioning.

New York State Penal Code 165.15 (BR 17) states that a person is guilty of theft of services when with intent to obtain railroad, subway, bus, air, taxi or any other public transportation service without payment of the lawful charge therefor, or to avoid payment of the lawful charge for such transportation service which has been rendered to him, he obtains or attempts to obtain such service or avoids or attempts to avoid payment therefor by force, intimidation, stealth, deception or mechanical tampering, or by unjustifiable failure or refusal to pay.

NYPD Patrol Guide Procedure 221-01, “Force Guidelines,” states that, “in determining whether the use of force is reasonable, members of the service should consider the following: nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to the number of MOS; size, age, and condition of the subject in comparison to the MOS; subject’s violent history; presence of hostile crowd; subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence,” (BR 04). NYPD Patrol Guide Section 221-02, “Use of Force” stipulates that officers should, “apply no more than the reasonable force necessary to gain control” (BR 04).

NYPD Patrol Guide Procedure 200-02, (BR 05) states that members of service pledge to value human life, respect the dignity of each individual, and render their services with courtesy and civility.

§ 87(2)(g)

MTA footage, which captures the individual attempting to enter the subway system without paying by manipulating the turnstile. § 87(2)(g)

, it is recommended that **Allegations A and B** be closed as **Within NYPD Guidelines**.

§ 87(2)(g)

The footage did capture that the individual was generally resistant about their transit ejection despite attempting to evade the fare in the immediate presence of police officers. Consistent with PO Chu and PO Hosein, the MTA video shows that the individual passively resisted by dropping their weight and laying on their back on the ground. § 87(2)(g)

§ 87(2)(g)

it is therefore recommended that
Allegation C be closed as **Substantiated**.

Allegation (D) Force: Police Officer Saleem Hosein used physical force against an individual.

§ 87(2)(b) stated (BR 06) the following: At the time of the incident, she walked alone near the 2nd Avenue F line subway entrance on the southwest corner of Houston Street and Chrystie Street, in Manhattan. § 87(2)(b) observed PO Hosein shove the individual into the glass wall adjacent to the subway exit on the street level, causing the individual to fall onto the ground. PO Hosein used both hands with closed fists to push the individual on their chest. PO Chu was also present, a few feet away. § 87(2)(b) took out her cell phone and began filming a video, a copy of which she provided the investigation. PO Hosein and PO Chu then retreated down the stairs into the subway station and she had no further interaction with either officer.

§ 87(2)(b) cell phone video (BR 07) captures the following: At 0:00, § 87(2)(b) points the camera towards the subway exit. PO Hosein is at street level, and PO Chu ascends the stairs closely behind him. § 87(2)(b) states, “Where’s your courtesy and respect?” PO Hosein replies, “[The individual] swung at me, what you want me to do?” PO Chu replies, “I saw you take [the individual] down.” PO Hosein states, “Did you see what happened down there [in the subway station]?” A male voice off screen states, “I saw him hit you with crutches but he doesn’t have them anymore.” At this time, the individual is captured sitting on the ground with their back against the building line, directly below a large glass window. After some additional verbal exchanges, PO Hosein re-enters the subway stairs. PO Chu remains on the staircase and the video ends at 1:00. The video does not capture PO Hosein pushing the individual into the glass window.

MTA surveillance footage does not capture this aspect of the incident as it occurred at street level.

PO Chu stated that after he stopped dragging the individual by the leg, he and PO Hosein stood the individual up by the arms and carried them up the subway stairs. The individual dropped their weight as the officers escorted them up the stairs. Once they reached the top of the stairs, the officers placed the individual onto the ground in a seated position. PO Chu did not observe PO Hosein push the individual into the wall at the top of the stairs or use any other type of physical force.

PO Hosein described the remainder of the incident as follows: After PO Chu stopped dragging the individual, the officers picked the individual up by the arms and walked them towards the staircase. Another unidentified civilian individual in the subway saw the individual’s crutches in the mezzanine area and brought the crutches over to the officers. PO Hosein returned the crutches to the individual. The individual then extended the crutches and began swinging them at the officers. PO Hosein was concerned that the crutches may hit him, and in fact a crutch hit PO Hosein’s BWC and it fell out of PO Hosein’s chest mount. PO Hosein then took the crutches away from the individual and placed them at the bottom of the stairs. The officers resumed removing the individual by holding the individual’s arms and guiding them up the stairs. Upon reaching the top of the stairs, officers placed the individual on the ground in a seated position. At no point did PO Hosein use any additional physical force.

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **Unable to Determine**.

Allegation (E) Abuse of Authority: Police Officer Saleem Hosein improperly used his body-worn camera.

Allegation (F) Abuse of Authority: Police Officer Guo Chu improperly used his body-worn camera.

Requests to the NYPD's Legal Bureau yielded negative results for any BWC activations related to this incident (BR 11).

PO Chu and PO Hosein did not dispute failing to activate their BWCs during this incident. Despite not issuing any summonses or effecting arrests, both PO Chu and PO Hosein suspected the individual of breaking the MTA code of conduct by attempting to evade the fare and began taking enforcement action. PO Hosein stated he did not activate his BWC because everything unfolded so quickly, while PO Chu stated that it "slipped his mind." Both officers acknowledge that they were required by the Patrol Guide to have activated their BWCs during such an incident.

NYPD Patrol Guide Procedure 212-123 (BR 08) states that members of service are required to activate their body-worn cameras prior to engaging in any police action. Police action is defined as any police service, as well as law enforcement or investigative activity conducted in furtherance of official duties. Police action includes responding to calls for service, addressing quality of life conditions, handling pick-up assignments and any self-initiated investigative or enforcement actions such as witness canvasses, vehicle stops and Investigative Encounters.

§ 87(2)(g) it is undisputed that PO Chu and PO Hosein did not activate their BWCs § 87(2)(g)

§ 87(2)(g) it is therefore recommended that **Allegations E, F** be closed as **Substantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b)
- PO Chu has been a member of service for nine years and has been a subject in five complaints and 25 allegations, none of which were substantiated. § 87(2)(g)
- PO Hosein has been a member of service for four years and has been a subject in five CCRB complaints and 17 allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of August 14, 2024, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (BR 10).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 14

Investigator:	C.V.	Inv. Carlo Vescovi	02/18/2025
	Signature	Print Title & Name	Date

Squad Leader:	Cassandra Fenkel	IM Cassandra Fenkel	02/18/2025
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date